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Huge USA, Inc. v. Fashion Nova, Inc., et al.

Thursday, September 24, 2026

CASE NUMBER: 23STCV28862

OPPOSED

Plaintiff Huge

USA, Inc.'s Motion for Summary Adjudication

Defendant Fashion

Nova, Inc.'s Motion for Summary Judgment or Adjudication

Facts:

This is an action for unfair competition, interference with economic relations, and trademark infringement. The First Amended Complaint (FAC) alleges as follows. Plaintiff Huge USA, Inc. (Plaintiff) manufactured and supplied Defendant Fashion Nova, Inc. (Defendant) with popular, brand-name jeans, for the latter to sell to customers. (FAC ¶¶ 16–22.) Defendant has since engaged manufacturers to create jeans effectively identical to those manufactured by Plaintiff, including the use of Defendant's distinctive "style numbers," and has used unfair tactics to promote and sell these products to customers and create brand confusion as to which product they are buying. (FAC

¶¶ 23–33.)

Procedural History: Plaintiff

filed the original complaint on November 27, 2023, and filed the FAC on April 11, 2024, alleging eight causes of action:

1.

Unfair Competition

2.

Intentional Interference with Economic Relations

3.

Intentional Interference with Contract

4.

Negligent Interference with Economic Relations

5.

Unjust Enrichment

6.

Common Law Trademark Infringement

7.

Common Law Trade Dress Infringement

8.

Penal Code § 496

On

June 14, 2024, this court sustained Defendant Fashion Nova, Inc.'s demurrer to the fifth and eighth causes of action for unjust enrichment and receipt of stolen property, and otherwise overruled the demurrer.

This

court on April 3, 2025, denied Defendant's motion for protective order.

On

June 12, 2026, this court granted Defendant's motion to continue trial.

On

July 23, 2026, this court granted in part Defendant's motion to compel further responses to requests for production.

Plaintiff

filed the present motion for summary adjudication on May 20, 2026. Defendant filed an opposition on July 22, 2026. Plaintiff filed a reply on September 11, 2026.

Defendant

filed the present motion for summary judgment on May 22, 2026. Plaintiff filed an opposition on July 22, 2026. Defendant filed a reply on September 11, 2026.

Analysis

I. OBJECTIONS

Plaintiff's

Motion

Defendant Fashion Nova, Inc. offers objections to the evidence submitted by Plaintiff Huge USA, Inc., in support of its motion for summary adjudication.

Defendant first offers objections to the declaration of Jin Ser Park. Objections No. 3 and 13 are SUSTAINED as to Park's testimony concerning Plaintiff's supplying a majority of Defendant's denim inventory, which is made without foundation. Objection No. 16 is SUSTAINED as to Park's testimony concerning "SEO diversion," consumer reviews, and the screenshots contained in Exhibit D, which Park does not authenticate. Objections No. 23, 27, 32–34, 35, 40, and 43–45 are SUSTAINED as to Park's description of the content of Plaintiff's advertising materials and websites, on grounds of the best evidence rule. (Evid. Code §§ 1520–1523.) Objection No. 64 is SUSTAINED as to Park's testimony that a "number of buyers have noted consumer requests for styles by name," which is hearsay. Objection No. 65 is SUSTAINED on hearsay grounds to Park's testimony as to what other declarations to be later obtained by Plaintiff will say. Objection No. 68 is SUSTAINED for lack of foundation as to Park's testimony concerning when alleged infringement began and its effects. Objection No. 71 is SUSTAINED on hearsay grounds.

Defendant' also objects to the declaration of William Jun. Objection No. 4 to Jun's testimony concerning search engines is SUSTAINED, as Jun's analysis is offered without foundation for his knowledge on this point.

Defendant finally objects to the declaration of Daniel Park submitted with Plaintiff's motion. Objections No. 10 and 11 are SUSTAINED for foundation and hearsay, concerning Park's testimony regarding a proposed expert report, the expert's qualifications, and Dauber challenges. Defendant's remaining objections are OVERRULED.

Plaintiff, meanwhile, offers objections to the evidence submitted by Defendant in opposition. Plaintiff's objections to the declaration of Sheri Duran are OVERRULED. Objection No. 11 to the declaration of Valentine Shalamitski is SUSTAINED for hearsay. The remaining objections are OVERRULED.

Defendant's
Motion

Plaintiff's objections to the Duran declaration are OVERRULED.

As to Defendant's objections to the Jin Ser Park declaration, Objections No. 21–24 are SUSTAINED, as this testimony concerns Park's relation of unsworn expert opinion from Dr. Larry Chiagouris concerning "indicia of secondary meaning." Objections No. 25 and 26 are also SUSTAINED on hearsay grounds.

As to the William Jun declaration, Defendant's Objections No. 6 and 10 are SUSTAINED, as Jun offers conclusions as to the similarity of Defendant's jeans, and as to the secondary meaning of style numbers, without methodology or explanation of his reasoning.

Defendant's remaining objections are OVERRULED.

II. MOTIONS FOR SUMMARY JUDGMENT OR
ADJUDICATION

A party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc. § 437c, subd. (a).) “[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc. § 437c, subd. (f)(2).)

A. Plaintiff's Motion

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; accord Code Civ. Proc. § 437c, subd. (p)(2).) Plaintiffs moving for summary judgment may meet their initial burden by “prov[ing] each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c(p)(1).)

Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1).) The defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Plaintiff Huge USA, Inc., dba Vibrant M.I.U.

("Plaintiff") seeks summary adjudication of its first, second, third, fourth, sixth, seventh, and eighth causes of action against Defendant Fashion Nova, Inc. ("Defendant"), respectively for unfair competition, intentional interference with economic advantage, intentional interference with contract, negligent interference with economic advantage, trademark infringement, trade dress infringement, . leaving the question of damages "for the jury." (Motion at pp. 2, 4.) Plaintiff also seeks summary adjudication of the issues of functionality, lack of secondary meaning, and likelihood of confusion. (Motion at pp. 2, 14–15.)

1. Initial Matters

As an initial matter, Plaintiff's motion fails as to the second, third, and fourth causes of action for intentional and negligent interference with contract and economic advantage, because summary adjudication on these claims is not available absent adjudication of the element of damages.

May a plaintiff seek summary adjudication of liability only, leaving the resolution of damages to a later trial? The statutory language mandates the question be answered in the negative. A plaintiff can obtain summary adjudication of a cause of action only by proving "each element of the cause of action entitling the party to judgment on that cause of action." As damages are an element of a breach of contract cause of action [citation], a plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.

(Paramount Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.)

Similarly, damages are an element of Plaintiff's second, third, and fourth causes of action for interference with contract and economic advantage. (Reeves v. Hanlon (2004) 33 Cal.4th 1140, 1148 [element of "resulting damage" for contractual interference]; Nelson v. Tucker Ellis, LLP (2020) 48 Cal.App.5th 827, 844 ["resulting economic harm" element of negligent interference]; Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc. (2017) 2 Cal.5th 505, 512 [requiring "economic harm proximately caused by the defendant's action" for economic advantage claim].) Plaintiff thus cannot seek summary adjudication

of liability of these claims, while leaving damages to be determined by the trier of fact.

Nor may Plaintiff seek separate summary adjudication as to the issues of functionality, lack of secondary meaning, and likelihood of confusion. Plaintiff seeks summary adjudication on these points by framing them as affirmative defenses upon which summary adjudication may be had. (See Code Civ. Proc. § 437c, subd. (f)(1).) But they are not affirmative defenses. Plaintiff acknowledges in its motion that the non-functionality of a given trade dress is not an affirmative defense, but an element of a plaintiff's claim for trade dress infringement. (Motion at p. 19; *Clicks Billiards, Inc. v. Sixshooters, Inc.* (9th Cir. 2001) 251 F.3d 1252, 1258 ["nonfunctional[ity]" is an element of trade dress infringement].) Likewise, a plaintiff claiming trademark infringement must prove the existence of a secondary meaning for descriptive marks and a likelihood of confusion resulting from the infringement. (See *North Carolina Dairy Foundation, Inc. v. Foremost-McKesson, Inc.* (1979) 92 Cal.App.3d 98, 106.) Thus summary adjudication cannot be had on these matters.

It is appropriate then to proceed to Plaintiff's claims for unfair competition and trademark and trade dress infringement.

2. Unfair Competition

The common law tort of unfair competition was described in the case *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377:

Although the term "unfair competition" applies to several types of misconduct [citation], the tort of unfair competition pertinent here is "the act of 'passing off' one's goods as those of another." [Citation.] That tort "developed as an equitable remedy against the wrongful exploitation of trade names and common law trademarks that were not otherwise entitled to legal protection." [Citation.] Injunctive relief and damages are available for common law unfair competition involving fraud or an intent to mislead consumers. [Citations.]

"The purpose of the equitable doctrine is to prevent unfair competition through misleading or deceptive use of a term

exclusively identified with the claimant's product and business [citation],
affording judicial protection whenever "the name and the business [through
continued association] become synonymous in the public mind; and submerges the
primary meaning of the name ... in favor of its meaning as a word identifying
that business." [Citation.] The crucial element is the mental association in
the buyer's mind between the mark used in connection with the product and a
single source of origin." [Citations.]

Under the doctrine, even a term or mark with
a common meaning may trigger the crucial mental association when it acquires a
"secondary meaning," that is, becomes identified in "the relevant marketplace"
with a product from "a unique or particular source." [Citation.] The
development of that secondary meaning does not require "that the buyer must
actually know the name of the source[,] but only that the buyer directly
associate the mark with but one, though, anonymous, source." [Citation.] Thus,
" 'secondary meaning is a shorthand phrase which describes the existence of
conditions from which public confusion will flow if the defendant is permitted
to pursue his deceptive scheme [citation]. If words have been used or
employed... in such a manner that the public has learned to associate them with
the thing described, they acquire a secondary meaning [citation].... If an
association is thereby formed in the minds of the public which fixes plaintiffs
as the source of something of a particular nature to be available in a
particular place, this is sufficient....' " ([Citations.]

(Los Defensores, Inc. v. Gomez (2014) 223
Cal.App.4th 377, 393–394.)

Plaintiff's claim for unfair competition
arises from Defendant's alleged passing off of its own jean styles as
Plaintiff's (FAC ¶¶ 36–37.) Plaintiff's motion focuses on Defendant's conduct
in using Plaintiff's "style numbers" on its jeans. (Motion at pp. 8–10.) These
style numbers are alphanumeric codes — e.g. P88, P453, P1691, etc. (Jin Ser
Park ("JSP") Decl. ¶ 3) — which per the
declaration of Plaintiff's CEO "appeared on product hang tags, sewn-in garment
labels, packaging, invoices, B2B order forms, e-commerce listings, trade show
displays, and throughout Vibrant's consumer-facing and retailer-facing
marketing materials." (JSP Decl. ¶ 4.) Plaintiff began using these marks with
the launch of its P88 jeans in 2012. (JSP Decl. ¶ 3.)

Plaintiff sold these jeans to multiple

retailers, but from 2016 through 2019, sales to Defendant, a popular online fashion vendor, accounted for the majority of Plaintiff's output. (JSP Decl. ¶ 14.) Plaintiff contends that in 2022 and 2023, it became aware that Defendant was using the same style numbers on its jeans. (JSP ¶ 16.) Plaintiff argues that summary adjudication is warranted because its style numbers had acquired secondary meaning by the time Defendant began to use them, and that consumer confusion has resulted. (Motion at p. 9.)

Triable issues exist as to whether Plaintiff's style numbers acquired a secondary meaning such that a claim for unfair competition may lie. Whether secondary meaning has been established in an unfair competition case is a question of fact. (Family Record Plan, Inc. v. Mitchell (1959) 172 Cal.App.2d 235, 243.)

We assess many factors to determine whether secondary meaning exists, including: "direct consumer testimony; survey evidence; exclusivity, manner, and length of use of a mark; amount and manner of advertising; amount of sales and number of customers; established place in the market; and proof of intentional copying by the defendant." [Citation.] "Because of the intensely factual nature" of the secondary meaning inquiry, "summary judgment is generally disfavored

(P and P Imports LLC v. Johnson Enterprises, LLC (9th Cir. 2022) 46 F.4th 953, 961.)[1]

Plaintiff argues that Defendant has admitted to intentional copying of the style numbers. (Motion at p. 14.) Defendant indeed admitted in response to Request for Admission No. 28 that it "did not design or develop the Contested Style Numbers independently but adopted them from [Plaintiff] VIBRANT." (Daniel Park Decl. Exh. B at p. 32.) "[P]roof of copying strongly supports an inference of secondary meaning." [Citation.] That is because competitors generally copy "to realize upon a secondary meaning that is in existence." (P and P Imports LLC v. Johnson Enterprises, LLC (9th Cir. 2022) 46 F.4th 953, 961.)

But the admission of intentional copying does not require a finding of secondary meaning, create a presumption, or otherwise shift the burden of proof: "Competitors may intentionally copy product features for a variety of reasons. They may, for example, choose to copy wholly functional features that they perceive as lacking any secondary meaning because

of those features' intrinsic economic benefits." (Fuddruckers, Inc. v. Doc's B.R. Others, Inc. (9th Cir. 1987) 826 F.2d 837, 844–845.)

Here, Defendant presents evidence that may ultimately vitiate any inference of secondary meaning derived from intentional copying. Defendant's General Manager of Buying for Women Fashion states in her declaration that the style numbers are not displayed on its website, but are used for tracking product orders internally. (Duran Decl. ¶ 11) The style numbers appear in purchase orders to vendors, in the Shopify point of sale system to track customer orders, and in the file names for product photos — not in consumer-facing elements of Defendant's website. (Duran Decl. ¶ 11.) Defendant cites its influencer advertising campaigns, in which celebrities were photographed in the jeans in question, and which did not include the style numbers at issue. (Shalamitski Decl. Exh. 39.) This evidence could reasonably support an inference that Defendant's copying of the style numbers was for its own internal convenience, based on its prior use of the same style numbers in its transactions with Plaintiff, and not intended to trade on Plaintiff's goodwill.

Plaintiff's other evidence is not uniformly supportive of the existence of secondary meaning for its style numbers. For instance, Plaintiff's advertising materials do not evidence consistent use of the style numbers. Plaintiff presents wholesale promotional flyers which offer jeans according to style numbers that are different from those claimed in the present action — for instance, instead of P88, they offer "P88DS," "P88MS," or "EP88." (JSP Decl. Exh. C.) The style numbers sometimes appear as they are pleaded (See JSP Decl. Exh. C at P_013985, P_013993; Exh. J at 000474), but the usage is inconsistent. Nor can it be determined from the evidence whether those instances in which the style numbers are used as pleaded occurred in materials to consumers, such as would by products through Defendant's site, or other vendors looking to purchase the goods wholesale.

Plaintiff argues for the existence of consumer confusion. (Motion at pp. 17–18.) But the court's ability to assess the existence of this confusion is hampered by the confused manner in which the evidence is presented. Plaintiff presents one exhibit consisting of customer reviews for an unspecified product in which customers state that the jeans are similar to Fashion Nova jeans. (JSP Decl. Exh. D.) Plaintiff places some reliance on a consumer review, again for

an unspecified product, entitled, "BUYER BEWARE: you can get fakes." (Motion at pp. 8, 9, 18.) But the review, in addition to referring to a product with Vibrant's (i.e. Plaintiff's) label, rather than Defendant's, refers to an experience in which they received a product different than that advertised, not confusion between Defendant's and Plaintiff's products based on style number. (JSP Decl. Exh. E.) Plaintiff finally submits hundreds of pages of reviews to indicate misattribution of Defendant's products to Plaintiff. (JSP Decl. ¶ , Exh. L.) But Plaintiff does not identify or highlight which of the hundreds of reviews it submits are intended to support this contention, and review of the unsorted, low-resolution screenshots presented does not reveal the confusion or misattribution that Plaintiff claims.

Accordingly, no summary adjudication is proper on Plaintiff's first cause of action for unfair competition. As Plaintiff's remaining claims for trademark and trade dress infringement likewise rely upon the existence of secondary meaning in the style numbers at issue (Motion at pp. 13–15), triable issues likewise prevent summary adjudication.

Plaintiff's motion for summary adjudication is therefore DENIED in its entirety.

B. Defendant's Motion

The moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord Code Civ. Proc. § 437c, subd. (p)(2).)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (*Aguilar*, supra, 25 Cal.4th at 850.)

The plaintiff may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. (*Ibid.*)

To establish a triable issue of material fact, the party opposing the

motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

1. Statute of Limitations / Laches

Defendant argues

that Plaintiff's claims fail because they are barred by applicable statutes of limitations and the doctrine of laches. (Motion at pp. 15–19.) Plaintiff's interference claims have a two-year limitations period (Knoell v. Petrovich (1999) 76 Cal.App.4th 164; Code Civ. Proc. § 339, subd. 1), and an action for common law unfair competition and infringement on trademark or trade dress is "no more than four years." (Magic Kitchen LLC v. Good Things Internat., Ltd. (2007) 153 Cal.App.4th 1144, 1157.)

Plaintiff's FAC

alleges that it uncovered Defendant's wrongful conduct in 2022 when it uncovered Defendant's wrongful conduct, i.e. that it "deliberately instructed manufacturers to exactly replicate Vibrant's jeans," and that it "sold these counterfeit jeans on its website, continuing to use images of models and celebrities donning Vibrant's jeans for marketing." (FAC ¶ 23.)

But Defendant presents

to emails which it contends establishes Plaintiff's constructive knowledge of the alleged wrongdoing as early as March 2016. The first email, dated March 19, 2026, is from a representative of Defendant to Sonny Yoon, an officer of Plaintiff. (Shalamitski Decl. Exh. 18.) In this email, Defendant's representative complains of several orders arriving late, and states, "Due to the ongoing issues and lack of real response from Christian, I have brought on new denim suppliers to reduce the amount of orders being placed with Vibrant." (Ibid.)

A second email,

dated April 7, 2017, was sent by Sonny Yoon to Defendant, in response to an email complaining of a recent change in fabrics employed by Plaintiff. (Shalamitski Decl. Exh. 19.) The letter sent by Sonny Yoon in response — from "my boss,," and confirmed by Plaintiff's CEO to have been drafted by him (JSP Decl. ¶¶ 4–5) — described hardships faced by Plaintiff as a company manufacturing domestically, the impossibility of further price renegotiation, and stating as follows: "Also, I would like to ask you again as a favor to not send our product to other places to copy because if you do not like our

products or it does not sell well for you anymore, then it's much simpler to just not order from us anymore rather than tarnishing the good long-term relationship and image that you once had." (Shalamitski Decl. Exh. 19.)

Defendant argues

that these two emails establish that Plaintiff suspected wrongdoing by April 2017, more than four years before filing suit on November 27, 2023. Thus Defendant argues that the limitations period had run out by April 2021, and that the ensuing period accrued only delay for the purposes of the application of the laches defense. (Motion at pp. 16–17.)

The discovery rule "postpones

accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action." (Fox v. Ethicon Endo-Surgery, Inc.

(2005) 35 Cal.4th 797, 807.) "A plaintiff has reason to

discover a cause of action when he or she "has reason at least to suspect a factual basis for its elements." (Ibid.) "In so using the term

"elements," we do not take a hyper technical approach to the application of the discovery rule. Rather than examining whether the plaintiffs suspect facts supporting each specific legal element of a particular cause of action, we look to whether the plaintiffs have reason to at least suspect that a " has injured them." (Ibid.)

Triable issues of

fact exist as to whether Plaintiff was on inquiry notice of the alleged wrongdoing of Defendant such that the statute of limitations or laches bars its claims. The only evidence indicating Plaintiff's potential awareness of its claims is that dated April 7, 2017. It does not purport to describe conduct that Defendant had thereto engaged in, indicate knowledge that such conduct had already occurred, and offers only a warning that Defendant — with whom Plaintiff had an ongoing, non-competitive relationship — ought not to turn that relationship into a competitive one.

Courts exercise

caution when determining whether a trademark plaintiff ought to have known of their claims:

While either actual or constructive knowledge

can satisfy the standard for knowledge of a potential cause of action, triggering accrual of the cause of action for statute of limitations purposes,

trademark holders are not required to “constantly monitor every nook and cranny of the entire nation and to fire both barrels of [its] shotgun instantly upon spotting a possible infringer.” [Citations.] Moreover, discovery of a cause of action does not necessarily equate to discovery of a defendant's first unpermitted use of the contested mark, as Defendant seems to suggest in its Motion, because Lanham Act § 43(a) also involves other elements, such as likelihood of confusion, that must be satisfied before a claim can accrue. [Citations.] Thus, some authority suggests that, for trademark infringement claims, for example, “laches creates an obligation to object and sue only at the identifiable point in time a likelihood of confusion existed.” [Citations.]

(Luna

Distributing LLC v. Stoli Group (USA), LLC (C.D. Cal., July 10, 2018, No. SACV171552DOCJDEX) 2018 WL 5099277, at *6.)

The scant nature of the evidence here, and the concerns discussed in the above authority, militate against any conclusion that Plaintiff's claims are barred by the statute of limitations or the laches doctrine as a matter of law.

1. Trademark Infringement

Defendant argues

that Plaintiff cannot succeed on its sixth cause of action for trademark infringement because the style numbers at issue had not acquired secondary meaning. (Motion at pp. 19–23.)

A trademark

infringement plaintiff “must show that: (1) it has a valid, protectable trademark, and (2) that eBay's use of the mark is likely to cause confusion.” (Applied Information Sciences Corp. v. eBay Inc. (9th Cir. 2007) 511 F.3d 966, 969.) “ There are three ways to establish a protectable trademark: “(1) [the plaintiff] has a federally registered mark in goods or services; (2) its mark is descriptive but has acquired a secondary meaning in the market; or (3) it has a suggestive mark, which is inherently distinctive and protectable.” (Ibid.) Defendant argues that because Plaintiff lacks a federally registered mark, and because its alphanumeric style numbers are not inherently distinctive, it must show that its mark has acquired a secondary meaning, which it cannot do. (Motion at pp. 19–23.)

Factors considered in determining whether a secondary meaning has been achieved include: (1) whether actual purchase[r]s of the product bearing the claimed trademark associate the trademark with the producer, (2) the degree and manner of advertising under the claimed trademark, (3) the length and manner of use of the claimed trademark and, (4) whether use of the claimed trademark has been exclusive.

(Levi Strauss & Co. v. Blue Bell, Inc. (9th Cir. 1985) 778 F.2d 1352, 1358.)

Defendant argues

that no secondary meaning has attached to the style numbers. It argues that the bulk of the advertising for Plaintiff's products has been conducted by other entities, including Defendant, under other entities' brands, without reference to the style numbers at issue. (Motion at pp. 20–21.) Defendant argues that Plaintiff's own marketing materials, to the extent they referenced style numbers, referred to alphanumeric indicators different from those at issue in this case, and were in any event directed to vendors for the purpose of soliciting wholesale purchase of Plaintiff's goods, not consumers. (Motion at p. 21.) Defendant argues that Plaintiff cannot claim exclusivity in its use of the style numbers because those style numbers most frequently appeared under other companies' branding (such as Defendant's), and other clothing and pants products now on the market also use the "P88" term in their branding. (Motion at p. 22.) Defendant finally argues that Plaintiff has not conducted a consumer survey to determine whether purchasers associate the style numbers at issue with a singular source. (Motion at pp. 22–23.)

The evidence

presented by Defendant broadly supports its contentions in relation to the factors described above. But Defendant discounts the significance of the existence of intentional copying. "[P]roof of copying strongly supports an inference of secondary meaning." (P and P Imports LLC v. Johnson Enterprises, LLC (9th Cir. 2022) 46 F.4th 953, 961.) Defendant contends that it uses the style numbers only for internal purposes, such as tracking inventory and shipments. (Duran Decl. ¶ 11.)

But the style numbers are visible to consumers externally via the garment tags (Jun Decl. Exh. A), and Defendant acknowledges that the style numbers are used to "differentiate and organize products so that they are readily identifiable." (Duran Decl. ¶ 11.)

Defendant argues

that it copied the style numbers only for functional reasons. (Reply at p. 17.)

The trier of fact may indeed conclude that the copying arose from motives other than to trade upon the numbers' secondary meaning. But the argument raised by Defendant as to functionality is derived from cases addressing trade dress and product design, not the use of a trademark. (See *Tempo Communications, Inc. v. King Technology of Missouri, LLC* (S.D. Cal., July 19, 2021, No. 21-CV-80-AJB-WVG) 2021 WL 4935524, at *7.) And although Defendant raises a functional argument as to its use of style numbers in general, it raises no evidence or argument as to the functional benefits related to the use of Plaintiff's style numbers, as opposed to another alphanumeric signifier.

The existence of

secondary meaning is a question of fact. (*Family Record Plan, Inc. v. Mitchell* (1959) 172 Cal.App.2d 235, 243.) "[S]ummary judgment is generally disfavored in the trademark arena" due to "the intensely factual nature of trademark disputes." (*Marketquest Group, Inc. v. BIC Corp.* (9th Cir. 2017) 862 F.3d 927, 932.)

Accordingly, the

motion is DENIED as to the sixth cause of action for trademark infringement.

2. Trade Dress Infringement

"To sustain a claim

for trade dress infringement, LNB must prove: "(1) that its claimed dress is nonfunctional; (2) that its claimed dress serves a source-identifying role either because it is inherently distinctive or has acquired secondary meaning; and (3) that the defendant's product or service creates a likelihood of consumer confusion." (*Nitro NRG Corporation v. Liquid Nitro Beverages, Inc.* (C.D. Cal., Jan. 17, 2017, No. EDCV162315JGBDTBX) 2017 WL 2964802, at *3.)

Defendant here

argues that Plaintiff's claimed trade dress infringement is too generic and overbroad to form any basis for a trade dress claim. (Motion at pp. 24–25.) "Courts exercise 'particular caution' when extending protection to product designs because such claims present an acute risk of stifling competition. [Citation.]

"While most trademarks only create a monopoly in a word, a phrase or a symbol, granting trade dress protection to an ordinary product design create[s] a monopoly in the goods themselves."

(Walker & Zanger, Inc. v. Paragon Industries, Inc. (N.D. Cal. 2007)
549 F.Supp.2d 1168, 1174.) “[G]eneric product designs are unprotectible even
upon a showing of secondary meaning.” (Ibid.) “Cases addressing product
design suggest that the term “genericness” covers three situations: (1) if the
definition of a product design is overbroad or too generalized; (2) if a
product design is the basic form of a type of product; or (3) if the product design
is so common in the industry that it cannot be said to identify a particular.”
(Ibid.)

Defendant argues
that Plaintiff’s identified protected product designs for its jeans are too
overbroad to be protected. (Motion at pp. 24–25.) The following are examples of
Plaintiff’s claimed protected trade dress elements, proffered in interrogatory
responses:

.
P88 and

P453: “ultra-high-rise waistband, flat faux front pockets, sculpted curved back
pockets, narrow double- stitching, rayon-rich fabric blend, rear yoke
configuration, and sleek ankle taper”;

.
P522: “distinctive
flare silhouette with specific measurements, high-rise waistband, unique side
seam stitching pattern, and specific fabric wash creating the overall aesthetic”;

.
P633: “mid-rise
waist-band positioned at specific measurements, skinny taper configuration,
unique stitching pattern, and specific fabric wash”;

.
P711: “asymmetric
distressing configuration, strategically placed rips, singular frayed patch on
upper thigh, varied slash sizes and shapes, clean surface allowing distressing
to serve as visual centerpiece.”

(See Shalamitski
Decl. Exh. 32.)

Defendant analogizes

the present case to that of *Walker & Zanger, Inc. v. Paragon Industries, Inc.* (N.D. Cal. 2007) 549 F.Supp.2d 1168, 1175, in which the court granted summary judgment on a trade dress claim after finding that certain trade dress descriptions, both pleaded and set forth in discovery, to be too overbroad and generic to support a claim for trade dress infringement:

The

court first finds that some of the elements of plaintiff's proposed trade dress are overbroad. The court acknowledges that trade dress of "decorative or artistic" works may be harder to capture in words, and "may need descriptions more broadly framed." *Yurman*, 262 F.3d at 115. But for some of the trade dress elements, plaintiff resorts to empty generalities in the face of more precise alternatives. For instance, to describe the colors of the trade dress, plaintiff should list the actual colors rather than claim a "palette of colors reminiscent of Provence." Or instead of defining the three-dimensional relief as "complex," plaintiff should provide the magnitude and angle of relief that render plaintiff's tiles distinctive. Finally, some terms leave the boundary of plaintiff's trade dress rights unclear, such as the terms "rustic look," "weathered look," "architectural character" or even "Old World handiwork." These terms fail to provide adequate notice to competitors in the decorative tile business regarding the breadth of plaintiff's exclusivity rights.

(*Walker*

& *Zanger, Inc. v. Paragon Industries, Inc.* (N.D. Cal. 2007) 549 F.Supp.2d 1168, 1176.)

Defendant is correct that

the descriptions of Plaintiff's proposed trade dress are like those set forth in *Walker*. Plaintiff's

characterizations do not describe the proposed trade dress in such a manner that gives notice to its competitors as to the bounds of its claimed protections. Instead of identifying the specific design elements that make Plaintiff's trade dress unique, Plaintiff continually resorts to mere to a list of nouns, each preceded by the adjective like "distinctive," "specific," and "unique." These descriptions, which ought to demonstrate or at least describe the features that render the products at issue unique, instead merely insist upon uniqueness without explanation. They thus do not provide notice to competitors about the bounds of Plaintiff's proposed trade dress.

Defendant

further argues that Plaintiff's proposed trade dresses are generic, and merely articulate styles of jeans already on the market, and thus no secondary meaning can be said to attach to Plaintiff's designs. (Motion at pp. 24–27.) Plaintiff in opposition objects that Defendant's argument "conflates the existence of a broad product category with the distinctiveness of Vibrant's specific combination of elements across 17 distinct styles over more than a decade." (Opposition at pp. 29–30.) But Defendant approaches the issue on the terrain shaped by Plaintiff and its definitions of their proposed trade dresses and their overbroad formulations. Plaintiff cannot fairly contend that the motion does not adequately account for the unique combination of features that constitute its trade dress, while simultaneously refusing to describe what those precise features are.

As in *Walker & Zanger*, the appropriate remedy is to grant summary adjudication on the trade dress claim, on the grounds that Plaintiff's proposed trade dress definitions are too broad to support relief. (*Walker & Zanger, Inc.*, supra, 549 F.Supp.2d at p. 1177.)

Accordingly,
the motion is GRANTED as to the seventh cause of action for trade dress infringement.

3.
Interference
with Contract

"To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1148.) "Plaintiff need not allege an actual or inevitable breach of contract in order to state a claim for disruption of contractual relations. We have recognized that interference with the plaintiff's performance may give rise to a claim for interference with contractual relations if plaintiff's performance is made more costly or more burdensome." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1129.)

Defendant argues that Plaintiff cannot establish the elements of its contractual interference claim because it has presented no contractual relationship that was breached or disrupted, and because there is no evidence that Defendant knew of or intentionally acted to disrupt any such contract. (Motion at p. 28.)

Defendant presents evidence that Plaintiff, in response to requests for documents evidencing contracts that it claimed had been disrupted, did not present evidence of any contracts that had not been fully performed. (Shalamitski Decl. ¶ 12.) Plaintiff in opposition argues that triable issues exist as to whether Defendant disrupted useful economic relationships with other manufacturers. (Opposition at p. 31.)

No triable issues exist as to Plaintiff's contractual interference claims because Plaintiff has no evidence that any contractual relationship or obligation was disrupted, breached, or made more burdensome to perform. Asked in interrogatories to describe the contractual relations at issue in this claim, Plaintiff described "purchase arrangements and business relationships" in general terms, with the only specific relationships identified being "recurring purchase orders" with entities called E.8 Inc. and Twin Dragon. (Daniel Park Decl. Exh. 6, SROG No. 82.) These are the same entities and relationships that Plaintiff identifies in its own motion for summary adjudication. (JSP (MSA) Decl. ¶ 19.) Plaintiff thus identifies no contractual interference suffered save the failure to continue a relationship built on recurring purchase orders. No contract disruption is identified.

Accordingly, the motion is GRANTED as to the third cause of action for interference with contract.

4.

Interference with Economic Advantage

"Intentional interference with prospective economic advantage has five elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant's action." (Roy Allan Slurry Seal, Inc.

v. American Asphalt South, Inc. (2017) 2 Cal.5th 505, 512.)

Defendant argues

that Plaintiff's claim for intentional interference with economic advantage cannot succeed because it had no continuing economic relationships to which the tort could be subject, and Defendant has committed no "wrongful acts" upon which an intentional interference claim may lie. (Motion at pp. 29–30.)

These arguments are

unpersuasive. Defendant cites Plaintiff's discovery responses as not identifying any economic relationship, but such relationships were in fact identified in the discovery responses. (Daniel Park Decl. Exh. 6, SROG No. 82.) Sheri Duran testifies that Defendant did not know of these relationships (Duran Decl. ¶ 31), but Plaintiff's CEO testifies that he was personally involved in interactions through which Defendant would have learned of Plaintiff's relationships. (JSP (MSA) Decl. ¶ 20.) Plaintiff also presents evidence that one of these manufacturers — E.8 — ceased doing business with Plaintiff and commenced doing business with Defendant under an altered corporate form with the same officers from the same addresses, to supply materials for the very jean styles that Plaintiff alleges were copied from Plaintiff. (Jun Decl. ¶¶ 2–5.) Triable issues exist as to the elements of Plaintiff's economic interference claim.

Defendant argues that Plaintiff cannot establish a duty of care for the purposes of Plaintiff's negligent interference claim, because competitors do not owe one another a duty of care. (See *Stolz v. Wong Communications Limited Partnership* (1994) 25 Cal.App.4th 1811, 1825 ["The complaint did not allege such a duty, nor could it, since it was plain that plaintiff and defendants were competitors."].) But it is not so plain that Plaintiff and Defendant were competitors at the time the alleged tort occurred. Defendant's evidence makes clear that it is a popular retail clothing vendor, while Plaintiff manufactures clothes principally for wholesale, and indeed that Defendant's purchases constituted the majority of Plaintiff's business. (PUMF No. 45.)

Accordingly, the motion is DENIED as to the second and fourth causes of action for intentional and negligent interference with economic advantage. Defendant's argument as to the first cause of action for unfair competition is that it is purely derivative of the other claims, and as such the motion is DENIED as to that

claim as well.

In summary, Defendant's motion is GRANTED as to the third cause of action for intentional interference with contract and seventh cause of action for trade dress infringement, and is otherwise DENIED.

Superior Court of California

County of Los Angeles

Department 732

HUGE
USA, inc.

Plaintiff

v.

FASHION NOVA, INC., et al.,

Defendants.

Case No.:
23STCV28862

Hearing Date: September 24, 2026

[TENTATIVE] RULING RE:

Plaintiff Huge USA, Inc.'s Motion for Summary
Adjudication.

Defendant
Fashion Nova, Inc.'s Motion for Summary Judgment or Adjudication.

Plaintiff
Huge USA, Inc.'s Motion for Summary Adjudication is DENIED.

Defendant

Fashion Nova, Inc.'s Motion for Summary Judgment or Adjudication is GRANTED as to the third cause of action for intentional interference with contract and seventh cause of action for trade dress infringement, and is otherwise DENIED.

Defendant to give notice.

Dated: September 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

Claims for common law unfair competition and trademark infringement are “substantially congruent” to similar claims made under the federal Lanham Act. (Cleary v. News Corp. (9th Cir. 1994) 30 F.3d 1255, 1263.)